



INDIAN POLITY



LOKPAL AND LOKAYUKTAS



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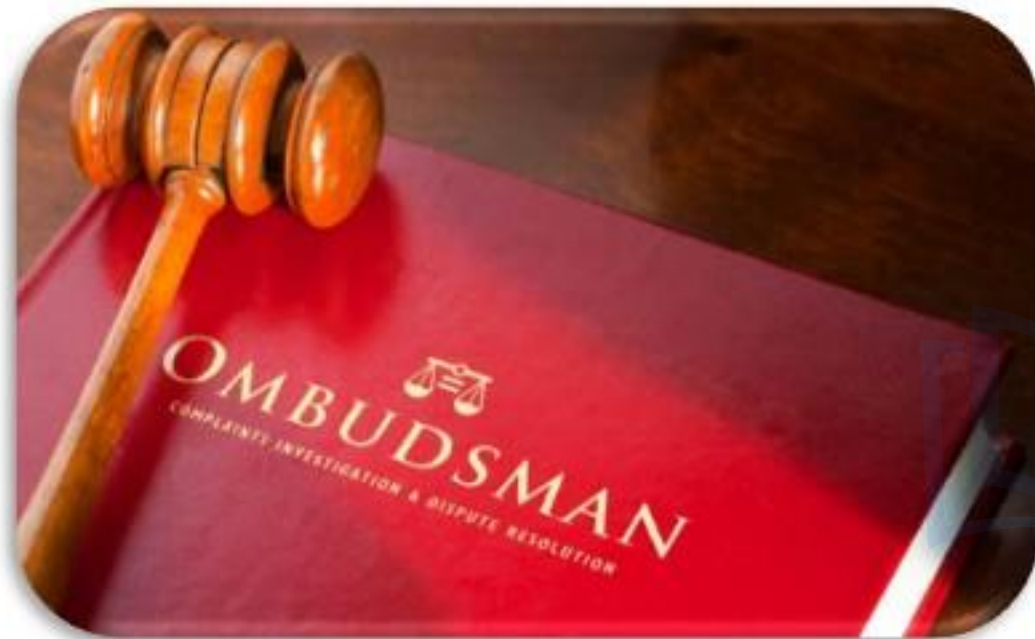
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- 1 Modern democratic states are characterized by a **welfare orientation**. Hence, the government has come to play an important role in the socio-economic development of a nation.

- 2 This has resulted in the **expansion of bureaucracy and the multiplication of administrative process**, which in turn increased the administrative power and discretion enjoyed by the civil servants at different levels of the government.

- 3 The **abuse of this power and discretion by civil servants** opens up scope for harassment, malpractices, maladministration and corruption. Such a situation gives rise to citizens' grievances against administration.



- 4 The success of democracy and the realisation of socio-economic development depends on the **extent to which the citizens' grievances are redressed.**
- 5 The earliest democratic institution created in the world for the redressal of citizens' grievance is the **Scandinavian institution of Ombudsman.**
- 6 Donald C. Rowat, an international authority on the Ombudsman, calls it a "uniquely appropriate institution for dealing with the average citizens' complaints about unfair administrative actions."

ORIGIN IN SWEDEN



1 The institution of Ombudsman was first created in **Sweden** in **1809**. 'Ombud' is a Swedish term and refers to a person who acts as the **representative or spokesman** of another person.

2 According to Donald C. Rowat, Ombudsman refers to "an officer appointed by the legislature to handle complaints against administrative and judicial action."

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ORIGIN IN SWEDEN



3

The Swedish Ombudsman deals with the citizens' grievances in the following matters:

- Abuse of administrative discretion
- Maladministration
- Administrative corruption
- Nepotism
- Discourtesy.

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ORIGIN IN SWEDEN



- 4 The Swedish Ombudsman is **appointed by the Parliament** for a term of **four years**.
- 5 He can be removed only by the Parliament on ground of its loss of confidence in him.
- 6 He submits his annual report to the Parliament and hence, is also known as '**Parliamentary Ombudsman**'. But he is independent of the Parliament (legislature) as well as the executive and judiciary.

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WHO IS AN OMBUDSMAN?



- 1** The Ombudsman enjoys the powers to **supervise the compliance of laws** and regulations by the public officials, and see that they discharge their duties properly.
- 2** In other words, he keeps a watch over all public officials—civil, judicial and military—so that they function impartially, objectively and legally, that is, in accordance with the law.
- 3** However, he **has no power to reverse** or quash a decision and has no direct control over **administration or the courts**.

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WHO IS AN OMBUDSMAN?



- 3** The Ombudsman can act either on the basis of a complaint received from the citizen against unfair administrative action or **suo moto** (i.e. on his own initiative).
- 4** He can **prosecute any erring official** including the judges. However, he himself cannot inflict any punishment.
- 5** He only reports the matter to the higher authorities for taking the necessary corrective action.

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SUMMARY OF OMBUDSMAN

In sum, the characteristics of the Swedish institution of Ombudsman are as follows:

- **Independence** of action from the executive
- **Impartial** and objective investigation of complaints
- **Suo moto power** to start investigations
- **Uninterrupted access** to all the files of administration
- Right to report to the Parliament as opposed to the executive; the institution of ombudsman is based on the **doctrine of administrative accountability to legislature**.
- **Wide publicity** given to its working in press and other media
- Direct, simple, informal, **cheap and speedy method** of handling complaints

The Ombudsman in India is called Lokpal/Lokayukta.

LOKPAL AND LOKAYUKTAS

LOKPAL



- 1 The **Administrative Reforms Commission** (ARC) of India (1966–1970) recommended the setting up of two special authorities designated as '**Lokpal**' and '**Lokayukta**' for the redressal of citizens' grievances.

- 2 These institutions were to be set up on the pattern of the institution of Ombudsman in Scandinavian countries and the Parliamentary Commissioner for investigation in New Zealand.

- 3 The **Lokpal** would deal with complaints against ministers and secretaries at **Central and state levels**, and the **lokayukta** would deal with complaints against other specified higher officials.

- 4 The ARC **kept the judiciary outside the purview of Lokpal and lokayukta** as in New Zealand. But, in Sweden the judiciary is within the purview of Ombudsman.

LOKPAL



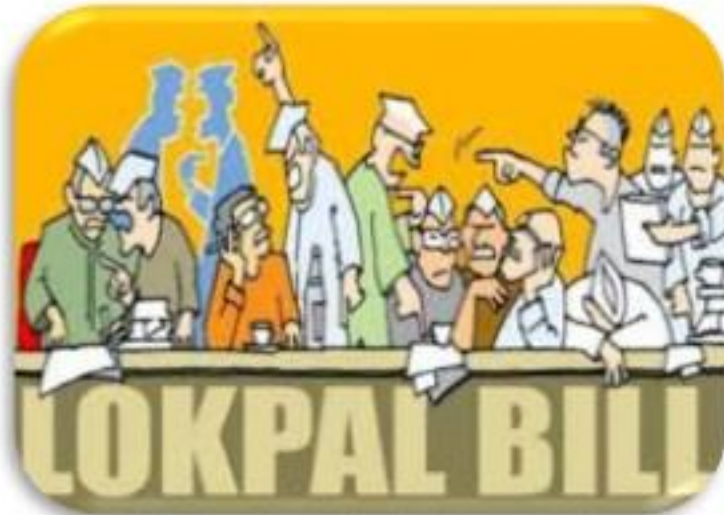
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The ARC also recommended that the institutions of Lokpal and lokayukta should have the following features:

- They should be demonstratively **independent** and **impartial**.
- Their investigations and proceedings should be conducted in private and should be informal in character.
- Their appointment should be, as far as possible, **non-political**.
- Their status should compare with the highest judicial functionaries in the country.
- They should deal with matters in the discretionary field involving acts of injustice, corruption or **favouritism**.
- Their proceedings should **not be subject to judicial interference**.
- They should have the maximum latitude and powers in obtaining information relevant to their duties.
- They should not look forward to any benefit or **pecuniary advantage** from the executive government.

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LOKPAL



WHY IN NEWS?

- Justice (retd.) Ghose's appointment has come nearly five years after the Lokpal Act was notified on January 16, 2014 after it was passed in 2013 following a countrywide anti-corruption movement.
- He is the country's first anti-corruption ombudsman.

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BACKGROUND OF THE ISSUE



PINAKI CHANDRA GHOSE
FORMER JUDGE OF SC

Leader of the largest Opposition Party was called as a “special invitee”, but he refused to attend.

- 1 The Lokpal and Lokayuktas Act, 2013 envisages setting up of a **Lokpal at the Centre and Lokayuktas for the States** to inquire into the allegations of corruption against public functionaries.
- 2 It was enacted in 2013 and received presidential assent on January 1, 2014.
- 3 However, the appointment of the Lokpal was delayed because of **absence of leader of opposition**, who is a member of selection panel to recommend Lokpal.

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WHO ARE ELIGIBLE TO BECOME THE CHAIRPERSON OF LOKPAL?



- “Who is or has been a Chief Justice of India;
- Is or has been a Judge of the Supreme Court;
- Or an eminent person of impeccable integrity and outstanding ability having special knowledge and expertise of not less than 25 years in the matters relating to anti-corruption policy, public administration, vigilance, finance including insurance and banking, law and management”.

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LOKPAL

SALENT FEATURES OF THE ACT

APPOINTMENT PROCESS



THE LOKPAL AND LOKAYUKTAS ACT, 2013

- 1 Selection Committee comprises of the the Prime Minister, the Speaker of the Lok Sabha, the Leader of the Opposition, the Chief Justice of India (or his nominee) and an eminent jurist (nominated by President based on the recommendation of other members of the panel).

- 2 A Search Committee recommends a panel of names to the high-power selection committee.

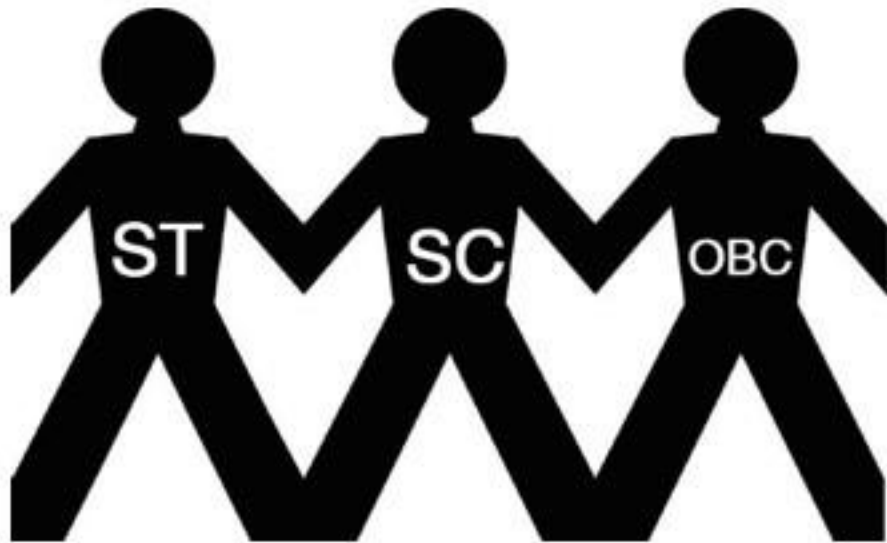
- 3 The Selection Committee headed by the Prime Minister will recommend names from among this panel and the President will appoint them as the members.

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SALENT FEATURES OF THE ACT

COMPOSITION OF LOKPAL



- 1** The Lokpal should consist of Chairman, and such *number of members not exceeding eight, of whom, 50% should be judicial members.*
- 2** It says, not less than 50% of the members of the Lokpal should be from among the persons belonging to the SCs, STs, OBCs, Minorities and Women.

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SALENT FEATURES OF THE ACT

SALARIES AND SERVICE CONDITIONS



- 1 Salaries, allowances and service conditions of Lokpal Chairperson will be the same as those for the CJI.
- 2 For other members it will be same as those for a Judge of the SC.
- 3 The administrative expenses of the Lokpal, including all salaries, allowances and pensions of the Chairperson, Members or Secretary or other officers or staff of the Lokpal, will be charged upon the Consolidated Fund of India.
- 4 The Chairperson or any Member shall be removed from his office by order of the President on grounds of misbehavior, infirmity of mind, etc.

LOKPAL AND LOKAYUKTAS

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SALENT FEATURES OF THE ACT

The
Prevention
of
Corruption
Act
1988

INQUIRY WING

It is to be headed by the Director of Inquiry for the purpose of conducting preliminary inquiry into any offence alleged to have been committed by a public servant, punishable under the Prevention of Corruption Act, 1988.

PROSECUTION WING

It will be headed by the Director of Prosecution for the purpose of prosecution (the institution and conducting of legal proceedings against someone in respect of a criminal charge) of public servants in relation to any complaint received by the Lokpal.

Once the other members are appointed, the process for more appointments will start i.e., Secretary, Director of Inquiry and Director of Prosecution and other officers and staff of Lokpal.

LOKPAL AND LOKAYUKTAS

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SALENT FEATURES OF THE ACT



POWERS WITH RESPECT TO CBI

Power of superintendence and direction over any investigation agency including CBI for cases referred to them by Lokpal. Transfer of officers of CBI investigating cases referred by Lokpal would need approval of Lokpal.

TIMELINES FOR ENQUIRY & INVESTIGATION

Act specifies a time limit for completion of inquiry and 6 months for completion of investigation by the CBI. This period of 6 months can be extended by the Lokpal on a written request from CBI.

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SALENT FEATURES OF THE ACT

CONFISCATION OF PROPERTY

The act also incorporates provisions for attachment and confiscation of property acquired by corrupt means, even while prosecution is pending.



SPECIAL COURT

Special Court shall be setup to hear and decide the cases referred by the Lokpal.



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JURISDICTION OF LOKPAL

- 1** It includes wide range of public servants right from the Prime Minister, Ministers and MPs to Group A, B, C & D employees of the Central Govt.
- 2** The chairpersons, members, officers and directors of any board, corporation, society, trust or autonomous body either established by an Act of Parliament or wholly or partly funded by the Centre.
- 3** Any society or trust or body that receives foreign contribution in the context of FCRA in excess of Rs. 10 lakh per yr.

LOKPAL AND LOKAYUKTAS

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SPECIAL CASE OF PM

- 1 The allegation against the PM related to international relations, external and internal security, public order, atomic energy and space *are exempted*.
- 2 Also, complaints against the PM are not to be probed unless the *full Lokpal bench considers the initiation* of an inquiry and at least two-thirds of the members approve it.
- 3 Such an inquiry against the PM, if conducted, is to be held in *camera*.
- 4 If the Lokpal comes to the conclusion that the complaint deserves to be dismissed, the records of the inquiry are *not to be published or made available to anyone*.

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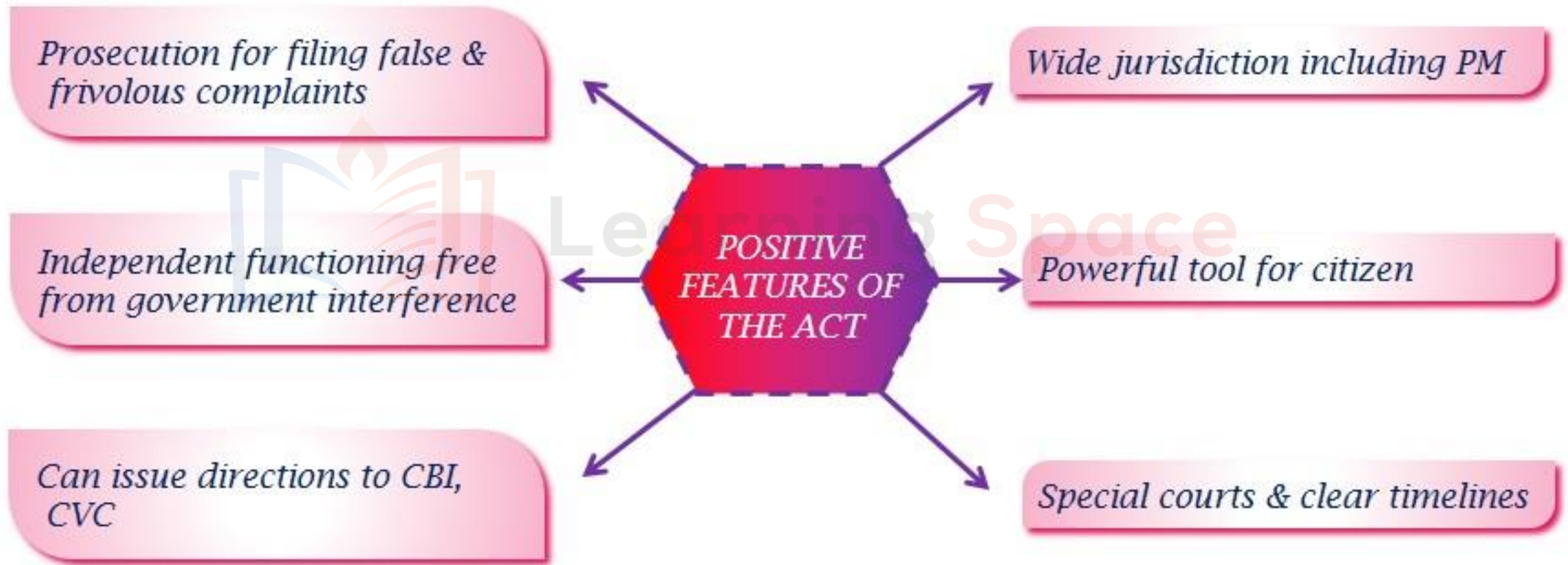


WHAT ABOUT IT'S OWN MEMBERS?

- 1** The Act also includes the Lokpal's own members under the definition of 'public servant'.
- 2** The Chairperson, Members, officers and other employees of the Lokpal shall be deemed to be public servants.
- 3** It shall apply to public servants in and outside India.
- 4** It clarifies that, a complaint under this Act shall only relate to a period, during which the public servant was holding or serving in that capacity.

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LOKPAL

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Limited Scope: The Act is only applicable to public servants, who come within the purview of the Union of India. Thus, a very large part of the corruption involving state governments, would fall entirely outside the purview of the central Lokpal in varying degrees.

3

Time frame limitation: The Act envisages that the Lokpal shall not inquire into any complaint, made after seven years from the date on which the offence has been committed. This restricts the scope, especially in relation to some of the large and complex scams that are exposed from time to time.



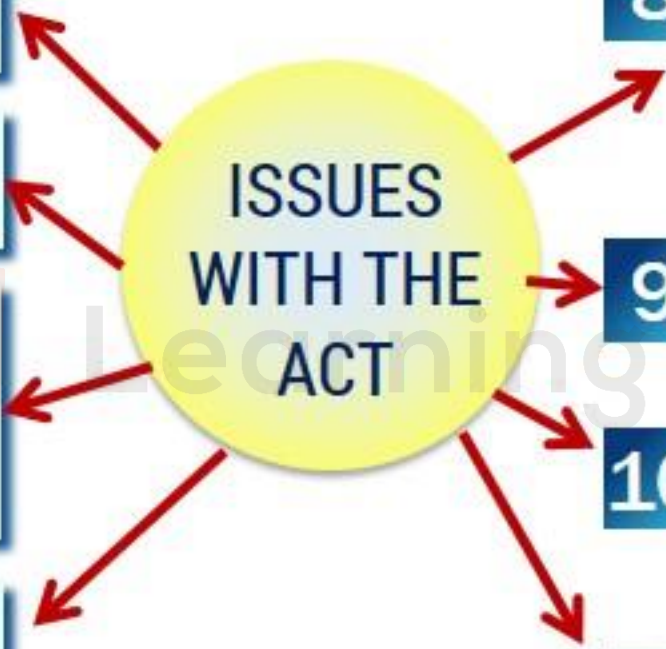
ISSUES WITH THE ACT

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Power and Jurisdiction of the Lokayuktas in States: State legislatures are free to determine the powers and jurisdictions of the Lokayukta which may establish weak Lokayuktas.

LOKPAL

ISSUES WITH THE ACT



4 Lokpal cannot suo moto proceed against any public servant.

5 Emphasis on form of complaint rather than substance.

6 Heavy punishment for false and frivolous complaints against public servants may deter complaints being filed to Lokpal.

7 The Lokpal is not given any constitutional backing and there is no adequate provision for appeal against the Lokpal.

8 Anonymous complaints not allowed – Can't just make a complaint on plain paper and drop it in a box with supporting documents.

9 Legal assistance to public servant against whom complaint is filed.

10 Very non-transparent procedure for dealing with complaints against the PM.

11 The biggest lacuna is the exclusion of judiciary from the ambit of the Lokpal.

LOKPAL

11 NON-COMPLIANCE WITH SECTION 63

Section 63 of the Act mandates establishment of the Lokayukta in every state, where it is not established within a period of one year from the date of commencement of this Act. But many states have not done so till now. Tamil Nadu, for instance, has enacted the law only now, but Lokayukta appointments are yet to be made. This shows that the **section is a dead letter** apart from encroaching on the legislative powers of the respective states.

12 NOT A COMPLETE SOLUTION

A fully empowered lokayukta in Karnataka, enjoying terms of service equivalent to the chief justice of India, has failed to contain corruption in that state. There were instances when the institution there itself came under a serious cloud, and when the lokayukta himself had to resign following a controversy involving his own son.

The point to be noted here is the undue haste with which the law itself was earlier enacted and the obvious haste with which the institution is being operationalised years later, after assuming a sudden urgency — reportedly on account of the Supreme Court's (SC) admonition.

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